

OREGON STATE HOSPITAL

POLICY

SECTION 7: Patient Rights **POLICY: 7.005**

SUBJECT: Patient Rights

POINT PERSON: Director of Ombuds and Family Services

APPROVED: Sara Walker, MD  **DATE: JULY 25, 2024**
Interim Superintendent

SELECT ONE: ☐ New policy ☐ Minor/technical revision of existing policy
☒ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy concerns the protection and promotion of each patient's rights at the Oregon State Hospital (OSH), and provides guidance to staff.
- B. This policy applies to all staff and patients.

II. POLICY

- A. Per Code of Federal Regulations (CFR) and state regulations, Oregon State Hospital (OSH) must protect and promote each patient's rights. A patient receiving treatment, their health care representative (HCR), or legal guardian has the right to exercise patient rights provided by federal and state regulation including, but not limited to:
 - 1. 42 CFR § 482.13;
 - 2. 45 CFR § 164;
 - 3. Oregon Revised Statutes (ORS) § 127;
 - 4. ORS § 426.385;
 - 5. ORS § 430.210;
 - 6. Oregon Administrative Rules (OAR) § 309-035-0175; and
 - 7. OAR §§ 309-102 – 309-118.
- B. OSH must inform each patient, or when appropriate their HCR or guardian, of the patient's rights.

1. Admitting staff must read and discuss patient rights with each patient, their HCR, or legal guardian as part of the admission process before providing patient services. This patient rights discussion must be documented on form OSH STK 03653 MR and filed in the patient's medical record.
 2. If a patient has limited English proficiency, language services will be arranged so the patient's rights information is provided in a manner in which the patient understands, as delineated in OSH Policy 6.020, "Interpreter, Language Services for Patients".
 3. OSH will provide a patient who is a Medicare beneficiary the "An Important Message from Medicare" (IM) notice in accordance with provisions of 42 CFR § 482.13(a)1 and 42 CFR § 489.27(a).
 4. A summary of patient rights delineated in CFR, ORS, and OAR are posted on every unit where they are freely available to all patients. Complete copies of patient rights regulations are available upon request from Consumer and Family Services.
- C. A patient may exercise the rights specified in federal and state regulations and in related OSH policies on patient rights without any form of reprisal or punishment.
1. A patient may exercise all civil rights in the same manner and with the same effect as one not admitted to the facility, including, but not limited, to the right to dispose of property, execute instruments, make purchases, enter contractual relationships, and vote, unless the patient has been adjudicated incompetent and has not been restored to legal capacity.
 2. A patient may have phone and mail access to the Office of Training, Investigations, and Safety; public defenders or attorneys of the patient's own selection who are independent of the hospital structure; and organizations identified by the federal government which provide pertinent rights and advocacy services.
- D. With the exception of an emergency situation of serious risk of harm to the patient or others, a patient's right may only be restricted after alternative interventions have been offered or attempted. A patient rights restriction must comply with processes established in relevant regulations and policies.
- E. OSH may not restrict a patient's right which a federal or state regulation specifies cannot be restricted.
- F. A patient may submit a grievance regarding their rights in accordance with the process in OSH Policy 7.006, "Patient Grievances".
- G. Any person may report a violation of patient rights to the following organization:
- U.S. Department of Health and Human Services
200 Independence Avenue, S.W.
Room 509F HHH Bldg.

Washington, D.C. 20201

Phone: 1-800-368-1019 TDD 1-800-537-7697

- H. A person must report allegations of abuse in accordance with OSH Policy 7.008, "Patient Abuse or Mistreatment Allegation Reporting" and related regulations.
- I. Staff must know and protect the rights of patients.
- J. The OSH Patient Rights Committee will monitor patient rights.
- K. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- L. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Health care representative" in this policy has the same meaning as the definition in ORS 127.505.
- B. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. RELATED OSH POLICIES AND PROTOCOLS

- 2.006 Public Records Retention and Destruction
- 2.008 Privacy and Security of Patient Information
- 4.010 Patient Funds
- 6.003 Seclusion and Restraints
- 6.010 Enhanced Supervision
- 6.011 Treatment Care Planning
- 6.020 Interpreter Language Services for Patients
- 6.025 Advance Directives
- 6.053 Education Services for Patients Under 21 Years of Age
- 6.056 Suicide Risk Screening and Assessment
- 7.001 Mail and Packages for Patients
- 7.003 Photographing or Recording of Patients

7.006 Patient Grievances

7.008 Patient Abuse or Mistreatment Allegation Reporting

7.009 Voter Registration and Voting

7.011 Faiths, Beliefs, and Practices

7.013 Law Library, Access to Legal Materials

8.001 Video Surveillance

Visitors to Patients

8.037 Patient Property and Valuables

8.041 Patient Personal Searches

8.044 Contraband and Prohibited Items

Medical Department protocol 1.001 Informed Consent

V. REFERENCES

42 CFR § 482.13.

42 CFR § 489.27(a).

45 CFR § 164.

Joint Commission Resources, Inc. (2024). The joint commission comprehensive accreditation manual for hospitals, PC 01.01.01. Oakbrook Terrace, IL: Author.

Joint Commission Resources, Inc. (2024). The joint commission comprehensive accreditation manual for hospitals, RI.01.01.01 – RI.02.01.01. Oakbrook Terrace, IL: Author.

Oregon Administrative Rules § 309-035-0175.

Oregon Administrative Rules §§ 309-102-0100 — 309-102-0150.

Oregon Administrative Rules §§ 309-104-0000 – 309-104-0020.

Oregon Administrative Rules §§ 309-106-0000 – 309-106-0020.

Oregon Administrative Rules §§ 309-108-0000 – 309-108-0020.

Oregon Administrative Rules §§ 309-112-0000 – 309-112-0035.

Oregon Administrative Rules §§ 309-114-0000 – 309-114-0030.

Oregon Administrative Rules § 309-116-0200.

Oregon Administrative Rules §§ 309-118-0000 – 309-118-0050.

Oregon Department of Human Services and Oregon Health Authority Shared Services. Auxiliary aid, alternate formats and language access services, DHS | OHA 010-013.

Oregon Revised Statutes § 127.505.

Oregon Revised Statutes § 127.649.

Oregon Revised Statutes §§ 127.700 — 127.737.

Oregon Revised Statute § 179.485.

Oregon Revised Statute § 426.072.

Oregon Revised Statutes §§ 426.380 — 426.395.

Oregon Revised Statutes §§ 430.205 – 430.210.